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Texas Doctor Who Falsely Diagnosed Patients Sentenced to 10 Years' Imprisonment in Connection with \$118M in Fraudulent Health Care Claims

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A Texas rheumatologist was sentenced to 10 years in prison and three years of supervised release for perpetrating a health care fraud scheme involving over \$118 million in false claims and the payment of over \$28 million by insurers as a result of him falsely diagnosing patients with chronic illnesses to bill for tests and treatments that the patients did not need. Jorge Zamora-Quezada, M.D., 68, of Mission, also falsified patient records to support the false diagnoses after receiving a federal grand jury subpoena. Following a 25-day trial, Zamora-Quezada was convicted of one count of conspiracy to commit health care fraud, seven counts of health care fraud, and one count of conspiracy to obstruct justice. In addition to his prison term, Zamora-Quezada was ordered to forfeit \$28,245,454, including 13 real estate properties, a jet, and a Maserati GranTurismo.

According to the evidence presented at trial, Zamora-Quezada falsely diagnosed his patients with rheumatoid arthritis and administered toxic medications in order to defraud Medicare, Medicaid, TRICARE, and Blue Cross Blue Shield. The fraudulent diagnoses made the defendant's patients believe that they had a life-long, incurable condition that required regular treatment at his offices. After falsely diagnosing his patients, Zamora-Quezada administered unnecessary treatments and ordered unnecessary testing on them, including a variety of injections, infusions, x-rays, MRIs, and other procedures—all with potentially harmful and even deadly side effects. To receive payment for these expensive services, Zamora-Quezada fabricated medical records and lied about the patients' condition to insurers.

"Dr. Zamora-Quezada funded his luxurious lifestyle for two decades by traumatizing his patients, abusing his employees, lying to insurers, and stealing taxpayer money," said Matthew R. Galeotti, Head of the Justice Department's Criminal Division. "His depraved conduct represents a profound betrayal of

trust toward vulnerable patients who depend on care and integrity from their doctors. Today's sentence is not just a punishment—it's a warning. Medical professionals who harm Americans for personal enrichment will be aggressively pursued and held accountable to protect our citizens and the public fisc."

"Through the false diagnoses and excessive false billing, Dr. Zamora-Quezada abused both patient trust and public resources," said Special Agent in Charge Jason E. Meadows of the U.S. Department of Health and Human Services Office of Inspector General (HHS-OIG). "It is imperative to investigate and address this form of fraud — not only to protect vulnerable individuals from harm but to uphold the integrity of the federal health care system and safeguard the use of public funds."

"The FBI is dedicated to working with all of our partners to address health care fraud," said Special Agent in Charge Aaron Tapp of the FBI's San Antonio Field Office. "This case was not only a concern to us because of the financial loss — the physical and emotional harm suffered by the patients and their families was alarming and profound. We hope this significant sentence will help bring closure to the many victims in this case."

Evidence at trial established that Dr. Zamora-Quezada falsely diagnosed patients in order to defraud insurers and enrich himself. Other rheumatologists in the Rio Grande Valley testified at trial that they saw hundreds of patients previously diagnosed with rheumatoid arthritis by Zamora-Quezada who did not have the condition, prompting one physician to explain that for "most" it was "obvious that the patient did not have rheumatoid arthritis." Zamora-Quezada's false diagnoses and powerful medications caused debilitating side effects on his patients, including strokes, necrosis of the jawbone, hair loss, liver damage, and pain so severe that basic tasks of everyday life, such as bathing, cooking, and driving, became difficult. As one patient testified, "Constantly being in bed and being unable to get up from bed alone, and being pumped with medication, I didn't feel like my life had any meaning." One mother described how she felt that her child served as a "lab rat," and others described abandoning plans for college or feeling like they were "living a life in the body of an elderly person."

Former employees detailed how Zamora-Quezada imposed strict quotas for procedures, leading to a climate of fear. Zamora-Quezada referred to himself as the "*eminencia*" — or eminence, threw a paperweight at an employee who failed to generate enough unnecessary procedures, hired employees he could manipulate because they were on J-1 visas and their immigration status could be jeopardized if they lost their jobs, and fired those who challenged him. Testimony also revealed Zamora-Quezada's obstruction of insurer audits by fabricating missing patient files, including by taking ultrasounds of employees and using those images as documentation in the patient records. Testimony at trial established that Zamora-Quezada told employees to "*aparecer*" the missing records — "to make them appear." Former employees also recounted being sent to a dilapidated barn to attempt to retrieve records. There, files were saturated with feces and urine, rodents, and termites that infested not only the records but also the structure.



Image Credit: Case 7:18-cr-00855, U.S. v. Zamora-Quezada

Zamora-Quezada's patient file storage facility

Zamora-Quezada used proceeds from his crimes to fund a lavish lifestyle, replete with real estate properties across the country and in Mexico, a jet, and a Maserati.

One of Zamora-Quezada's luxury properties

Zamora-Quezada's jet

FBI, HHS-OIG, Texas HHS-OIG, and the Texas Medicaid Fraud Control Unit investigated the case, with assistance from the Defense Criminal Investigative Service.

Principal Assistant Chief Jacob Foster and Assistant Chiefs Rebecca Yuan and Emily Gurskis of the Criminal Division's Fraud Section and Assistant U.S. Attorney Laura Garcia for the Southern District of Texas prosecuted the case. Assistant U.S. Attorney Kristine Rollinson handled asset forfeiture. Fraud Section Assistant Chief Kevin Lowell initially handled the prosecution. The prosecution team thanks the Fraud Section's Data Analytics Team, whose work initiated the investigation, Victim Witness Specialist Olga De La Rosa of the U.S. Attorney's Office for the Southern District of Texas, and the Texas Department of Insurance.

The Fraud Section leads the Criminal Division's efforts to combat health care fraud through the Health Care Fraud Strike Force Program. Since March 2007, this program, currently comprised of nine strike forces operating in 27 federal districts, has charged more than 5,800 defendants who collectively have billed federal health care programs and private insurers more than \$30 billion. In addition, the Centers for Medicare & Medicaid Services, working in conjunction with HHS-OIG, are taking steps to hold providers accountable for their involvement in health care fraud schemes. More information can be found at www.justice.gov/criminal-fraud/health-care-fraud-unit.

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